

		Defendant’s proof of service for the motion fails to meet the requirements of Code of Civil Procedure section 1013b(b)(1). In the absence of any opposition or response by Plaintiffs, proof of proper service on them is insufficient. If Defendant files sufficient proof of service prior to the hearing, the court will decide the motion on its merits. Otherwise, the hearing will be continued to September 18, 2026 at 10:00 a.m. in Department C-21.
62	<i>Place vs. Sustayta</i>	Plaintiff Dana M. Place’s motion to compel nonparty Miles Sustayta to appear for deposition is DENIED. [ROA #92.] CRC Rule 3.1346 requires that all moving papers supporting a motion to compel deposition responses or document production from a nonparty deponent “must be personally served on the nonparty deponent unless the nonparty deponent agrees to accept service by mail at an address specified on the deposition record.” Failure by the moving party to give proper notice to the deponent renders any subsequent court order voidable. (<i>Parker v. Wolters Kluwer US, Inc.</i> (2007) 149 Cal. App. 4th 285, 296; in accord, <i>Johnson v. E-Z Ins. Brokerage, Inc.</i> (2009) 175 Cal. App. 4th 86, 98.) Proof of service must be filed five court days before the hearing. CRC 3.1300(c). Here, Plaintiff has filed no proof of service showing any kind of service on Miles Sustayta.